

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD.,

Complainants,

— vs. —

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA and RAYA BAKHIREV,

Respondents.

**COMPLAINANTS' RESPONSE TO
RESPONDENTS' PROPOSED FINDINGS OF FACT**

1. The following 12 of the 17 subject vehicles have been in storage for more than three years before the above-captioned matter was filed on July 17, 2020: Vin#s (last 4 digits): 7130, 1344, 0283, 3906, 9803, 2288, 1102, 2140, 5968, 6626, 2708, and 0845. (Respondent's Exhibit #5, pages 1-2).

Response:

Objection: As a result of respondents' deliberate failure to comply with basic rules of discovery and the directives of the Presiding Officer's Scheduling Order of September 30, 2020, paragraph "2" of which required that "[e]ach factual proposition shall be followed by exact citation to evidence that the party contends will support the proposed finding of fact..."; paragraph "4(e)" of which required respondents to cite to a document in an appendix already in the record rather than include the same document in its own appendix; and paragraph "4(b)" of which required respondents to number the pages of their appendix sequentially with a prefix of "RX" in these proceedings; and further due to respondents already having been exposed for producing false invoices, bills of lading and emails in these proceedings and others (multiple copies of which have conflicting information making it impossible to ascertain the "true" version), it is impossible for complainants to ascertain whether or not the documents referenced in this respondents' proposed finding of fact were actually produced by respondents as part of the hundreds of pages of documents produced by them during discovery. For these reasons, complainants proactively undertook to mitigate this issue and provide as part of their Appendix "F", all documents produced by respondents which complainants rely upon and which complainants marked with a prefix of "RX" beginning with RX001 and ending with

RX242. Respondents have not used these documents. For these reasons, and without undertaking the undue burden of spending tens of hours to locate the specific documents in respondents' multiple document productions without any context or reference, to see if they were actually produced previously, or for the first time now, complainants are unable to admit or deny this finding of fact. In the alternative, complainants admit the proposed fact if it supports complainants' claims herein and deny the proposed fact if it prejudices complainants' claims herein. In the alternative, complainants respectfully request that the Presiding Officer simply strike respondents' proposed finding of fact from the record.

Subject to and without waiving the foregoing objections, complainants admit to and agree with the entry dates for the subject vehicles listed in pp. 1-2 of respondents' Exhibit #5 to the extent that the entry dates, when compared against the storage invoices produced by respondents herein, establish and prove that respondents failed to provide complainants with thirty (30) free days of storage for the subject cars, both in violation of respondents' tariff and in violation of the Shipping Act.

Further, complainants state that all MTL storage invoices for the 17 cars at issue contain a defective "Bill to" address (to wit: Bill to: Nnabugwu Chinedu Andrew, 63 New Hook Road, Bayonne NJ 07002) when Nnabugwu Chinedu Andrew was at all times never located at that address. On this issue, the Presiding Officer is respectfully referred to Complainants' Appendix "F" at page bates nos.: RX0082, RX0064, RX0065, RX0075, RX0066, RX0074, RX0071, RX 0073, RX0067, RX0069, RX0072, RX0068, RX0063, RX0070, RX0076 RX0086, RX0062 and RX0080.

2. On May 5, 2017, MTL wrote to Complainants, and Complainants received such: "Chinedu, This is our storage policy, 30 days free if you ship with us. I need to get your confirmation ASAP, or we are not loading on Monday." *Id.* at 10.

Response:

See Objection in Response No.: 1.

Subject to and without waiving the foregoing objections, complainants admit to and agree that pursuant to respondents' tariff, that complainants were entitled to thirty (30) free days of storage for the subject cars, and that respondents failed to provide complainants with thirty (30) free days of storage for the subject cars, both in violation of respondents' tariff and in violation of the Shipping Act. Specifically, MTL's Tariff, Rule 2-140, states that a "shipper will be entitled to 30 days free storage starting from the date of arrival of the vehicle at the carrier warehouse in order to allow time to provide the carrier with the vehicle title, absent which the vehicle will not be loaded into a container." See, Docket No. 16-16, ID on remand at p.7 ¶ 18.

3. Complainants received Invoice #77411 as to subject vehicle with a Vin# ending in 6538.(Respondent's Exhibits "1" and "2", page 25).

Response:

Denied. See Objection in Response No.: 1.

Further, there is no page "25" marked in respondents' Exhibits "1" and "2". Also, as a result of respondents' deliberate failure to comply with basic rules of discovery and the directives of the Presiding Officer's Scheduling Order of September 30, 2020, paragraph "2" which required respondents to provide that: "each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g. a page number in the appendix", complainants respectfully request that the Presiding Officer grant the relief requested above.

Further complainants ask the Presiding Officer to note that after discovery was closed, and in response to complainants' motion to compel, respondents produced an invoice # 16069 from Baltic Auto Shipping Corp. (See Appendix "C" to the parties' Joint Status Report of June 1, 2021 and Respondents' Response to Complainants' Motion for Reconsideration of June 21, 2021 at Exhibit "8") for the 2007 Toyota 4Runner with VIN# ending in 6538, dated 3/23/2019 for storage for the sum of \$2480.00 for the time period between 9/21/2017 through 3/16/2019. However, MTL's storage invoice for this car (See RX0082) is dated 2/2/2018 and is in the sum of \$2,230.00 for storage of this car from 9/21/17 through 5/1/18. This begs the question as to how MTL could claim that complainants had abandoned this vehicle in May 2018 when during this time period, the vehicle was allegedly physically located in a storage facility under the control of Baltic Auto Shipping Corp until March 16, 2019, more than one year after the undersigned counsel on June 15, 2018 wrote to Mr. Pogil : "...Please send the itemized invoices and house bill of loading immediately which we have been asking for since May 18, 2018, so that we can settle this account...". (See Respondents' Response to Motion for Reconsideration of June 21, 2021 at Exhibit "4" and Compl. Proposed FF# 111). MTL ignored this request and MTL also unreasonably charged excessive storage charges for the storage of the subject vehicle.

In the face of MTL's proven practice of creating false documents, the respondents' proposed finding of fact that complainants received Invoice #77411 should be stricken from the record.

4. Complainants did not pay for the Invoice #77411, and Complainants never provided anyproof of payment for such.

Response:

Denied. See Objection in Response No.: 1.

Subject to and without waiving the foregoing objections, complainants deny that they did not pay for the Invoice #77411, and that Complainants allegedly never provided any proof of payment for such. See Complainants' proposed FF#30. The Presiding Officer is also respectfully referred to Complainants' Appendix "F" at page bates No.: RX0202 – RX0205 which demonstrates that pursuant to MTL's Transaction Listing with regard to invoices for all subject vehicles, that the "Amount Due" from complainants to MTL was always \$0.00.

5. Complainants received Invoice #83489 as to subject vehicle with a Vin# ending in 9422,1102, 0845, 3906, and 7319. (Respondent's Exhibits "1" and "2", page 4).

Response:

Denied. See Objection in Response No.: 1 and Response No.: 3.

Further, there is no page "4" marked in respondents' Exhibits "1" and "2". Also, as a result of respondents' deliberate failure to comply with basic rules of discovery and the directives of the Presiding Officer's Scheduling Order of September 30, 2020, paragraph "2" which required respondents to provide that: "each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g. a page number in the appendix", complainants respectfully request that the Presiding Officer grant the relief requested above.

The Presiding Officer is further respectfully referred to complainants' proposed FF#162 and exhibits thereto which demonstrates that the subject invoice was emailed to complainants for the first time in June of 2018 after the subject container had arrived in Tincan.

6. Complainants did not pay for the Invoice #83489, and Complainants never provided anyproof of payment for such.

Response:

Denied. The Presiding Officer is respectfully referred to Complainants' Appendix "F" at page bates No.: RX0202 - RX0205 which demonstrates that pursuant to MTL's Transaction Listing with regard to invoices for all subject vehicles, that the "Amount Due" from complainants to MTL was always \$0.00.

The Presiding Officer is further respectfully referred to complainants' proposed FF#23 wherein Mr. Pogil emailed the undersigned counsel for complainants and explained that with regard to the subject container and cars, that complainants could: "...pick them up without making any additional payment with respect to this container...".

7. As to the subject vehicle with a Vin # ending in 9422, Complainants received Invoice #147122 for warehouse storage in the amount of \$1,840. (Respondent's Exhibit #1, and #2, page 7).

Response:

Denied. See Objection in Response No.: 1 and Response No.: 3.

Further, the page referenced above is not marked in respondents' Exhibits "1" and "2". No documents in said exhibits prove that complainants ever received the subject invoice. Also, as a result of respondents' deliberate failure to comply with basic rules of discovery and the directives of the Presiding Officer's Scheduling Order of September 30, 2020, paragraph "2" which required respondents to provide that: "each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g. a page number in the appendix", complainants respectfully request that the Presiding Officer grant the relief requested above.

Also, the subject invoice referenced by complainants never existed. After reviewing every single invoice in respondents' referenced exhibits, the number in the "Number" Box for every invoice fails to contain the invoice number referenced above. The Presiding Officer is respectfully referred to the table of invoices listed in Complainants' accompanying Brief on this issue.

Finally, The Presiding Officer is respectfully referred to Complainants' Appendix "F" at page bates No.: RX0202 – RX0205 which demonstrates that pursuant to MTL's Transaction Listing with regard to invoices for all subject vehicles, that the "Amount Due" from complainants to MTL was always \$0.00.

8. Complainants did not pay for the Invoice #147122, and Complainants never provided any proof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1 and 7 for the basis for this denial.

9. As to the subject vehicle with a Vin # ending in 1102, Complainants received Invoice #82149 for warehouse storage in the amount of \$4,300. (Respondent's Exhibit #1, and #2, page 10).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response Nos.: 3 and 7 for the basis for this denial.

10. Complainants did not pay for the Invoice #82149, and Complainants never provided anyproof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1 and 7 for the basis for this denial.

11. As to the subject vehicle with a Vin # ending in 0845, Complainants received Invoice #82150 for warehouse storage in the amount of \$2,960. (Respondent's Exhibit #1, and#2, page 9).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response Nos.: 3 and 7 for the basis for this denial.

12. Complainants did not pay for the Invoice #82150, and Complainants never provided anyproof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response Nos.: 3 and 7 for the basis for this denial.

13. As to the subject vehicle with a Vin # ending in 3906, Complainants received Invoice #82148 for warehouse storage in the amount of \$4,310. (Respondent's Exhibit #1, and#2, page 11).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

14. Complainants did not pay for the Invoice #82148, and Complainants never provided anyproof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response Nos.: 3 and 7 for the basis for this denial.

15. As to the subject vehicle with a Vin # ending in 7319, Complainants received Invoice #82151 for warehouse storage in the amount of \$2,130. (Respondent's Exhibit #1, and#2, page 8).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

16. Complainants did not pay for the Invoice #82151, and Complainants never provided anyproof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

17. As to the subject vehicle with a Vin # ending in 6993, Complainants received Invoice #82085 for warehouse storage in the amount of \$2,680. (Respondent's Exhibit #1, and#2, page 18).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

18. Complainants did not pay for the Invoice #82085, and Complainants never provided anyproof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

19. As to the subject vehicle with a Vin # ending in 2708, Complainants received Invoice #82086 for warehouse storage in the amount of \$3,290. (Respondent's Exhibit #1, and#2, page 17).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1 and 7 for the basis for this denial.

20. Complainants did not pay for the Invoice #82086, and Complainants never provided anyproof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

21. As to the subject vehicle with a Vin # ending in 6626, Complainants received Invoice #82145 for warehouse storage in the amount of \$3,430. (Respondent's Exhibit #1, and#2, page 14).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

22. Complainants did not pay for the Invoice #82145, and Complainants never provided anyproof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

23. As to the subject vehicle with a Vin # ending in 5968, Complainants received Invoice #82087 for warehouse storage in the amount of \$3,650. (Respondent's Exhibit #1, and#2, page 16).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

24. Complainants did not pay for the Invoice #82087, and Complainants never provided anyproof of payment for such.

Response: Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

25. As to the subject vehicle with a Vin # ending in 2288, Complainants received Invoice #82147 for warehouse storage in the amount of \$4,310. (Respondent's Exhibit #1, and#2, page 12).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

26. Complainants did not pay for the Invoice #82147, and Complainants never provided anyproof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

27. As to the subject vehicle with a Vin # ending in 9803, Complainants received Invoice #82088 for warehouse storage in the amount of \$4,620. (Respondent's Exhibit #1, and#2, page 15).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

28. Complainants did not pay for the Invoice #82088, and Complainants never provided anyproof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

29. As to the subject vehicle with a Vin # ending in 0283, Complainants received Invoice #82153 for warehouse storage in the amount of \$4,320. (Respondent's Exhibit #1, and#2, page 6).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

30. Complainants did not pay for the Invoice #82153, and Complainants never provided anyproof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

31. As to the subject vehicle with a Vin # ending in 1344, Complainants received Invoice #82146 for warehouse storage in the amount of \$4,550. (Respondent's Exhibit #1, and#2, page 13).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

32. Complainants did not pay for the Invoice #82146, and Complainants never provided any proof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

33. As to the subject vehicle with a Vin # ending in 7130, Complainants received Invoice #82154 for warehouse storage in the amount of \$4,390. (Respondent's Exhibit #1, Response No.: 3 and #2, page 3).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

34. Complainants did not pay for the Invoice #82154, and Complainants never provided any proof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

35. As to the subject vehicle with a Vin # ending in 2140, Complainants received Invoice #82084 for warehouse storage in the amount of \$4,190. (Respondent's Exhibit #1, and #2, page 19).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

36. Complainants did not pay for the Invoice #82084, and Complainants never provided any proof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

37. As to the subject vehicle with a Vin # ending in 2942, Complainants received Invoice #78952 for warehouse storage in the amount of \$2,240. (Respondent's Exhibit #1, and #2, page 23).

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

38. Complainants did not pay for the Invoice #78952, and Complainants never provided any proof of payment for such.

Response:

Denied. See response to respondents' proposed finding of fact Nos.: 1, Response No.: 3 and 7 for the basis for this denial.

39. Complainants acknowledge that they received all of the documents contained in Respondent's Exhibit #1.

Response:

Denied. See response to respondents' proposed finding of fact No.: 1 for the basis for this denial. Further, and as a result of respondents' deliberate failure to comply with basic rules of discovery and the directives of the Presiding Officer's Scheduling Order of September 30, 2020, paragraph "2" which required respondents to provide that: "each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g. a page number in the appendix", complainants respectfully request that the Presiding Officer simply strike respondents' proposed finding of fact from the record. Subject to and without waiving the foregoing objections, complainants deny that they received all of the documents contained in Respondent's Exhibit #1 and state that said exhibit contains no proof that such invoices were ever provided to complainants.

40. Subject vehicle (last four of Vin#3906) is a fair and accurate representation of the photograph that appears on page 55 of Respondent's Exhibit #6.

Response:

Denied. See response to respondents' proposed finding of fact No.: 1 for the basis for this denial.

Further, the page referenced above is not marked in respondents' Exhibit "6". No documents in said exhibit prove that complainants ever received the subject photo. There is no citation by respondents to any admission or other proof (other than counsel's conclusory assertion) that the photo is a true and accurate representation.

Also, respondents' waived their right to establish that this photo was authentic (by deposition of complainants which respondents choose not to take, and/or by request for admission which respondents chose not to propound to complainants).

41. Subject vehicle (last four of Vin#3906) appears on Invoice #83486 (Respondent's Exhibit #2, page 4). The same invoice also contains a charge for "cutting and dismantling."

Response:

Objection. See response to respondents' proposed finding of fact No.: 1, Response No.: 3 for the basis for this denial.

Further, the page referenced above is not marked in respondents' Exhibit "2". No documents in said exhibits prove that complainants ever received the subject invoice. Also, as a result of respondents' deliberate failure to comply with basic rules of discovery and the directives of the Presiding Officer's Scheduling Order of September 30, 2020, paragraph "2" which required respondents to provide that: "each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g. a page number in the appendix", complainants respectfully request that the Presiding Officer grant the relief requested above.

Also, the subject invoice referenced by complainants never existed. After reviewing every single invoice in respondents' referenced exhibits, the number in the "Number" Box for every invoice fails to contain the invoice number referenced above. The Presiding Officer is respectfully referred to the table of invoices listed in Complainants' accompanying Brief on this issue.

Finally, respondents continue to mislead the Presiding Officer in that this car was never cut in half. Rather, two other cars at issue herein were the cars that were cut and dismantled by MTL (to wit: a 2009 Toyota Venza [Vin# 4T3ZK11A79U017319] and a 2008 Lexus RX350 [Vin# 2T2HK31U58C080845]). See, Compl. Proposed FF# 190 and Appendix "D" at ¶ "5" (a).

Subject to the foregoing, complainants admit that respondents unlawfully cut and dismantled complainants' automobiles.

42. Looking at the photograph of the subject vehicle referenced in #40 above, Complainants were aware that cutting and dismantling meant that any dangling auto parts would have to be cut to enable a safe transportation.

Response:

Denied. See response to respondents' proposed finding of fact No.: 1 and Response No.: 3 for the basis for this denial.

Further, the page referenced above is not marked in respondents' Exhibit "6". No documents in said exhibits prove that complainants ever received the subject photo or that they were aware that cutting and dismantling meant that any dangling auto parts would have to be cut to enable a safe transportation. Further, this car (VIN# ending in 3906) was loaded into a container without any cutting or dismantling. Two other cars at issue herein were the cars that were cut and dismantled by MTL (to wit: a 2009 Toyota Venza [Vin# 4T3ZK11A79U017319] and a 2008 Lexus RX350 [Vin# 2T2HK31U58C080845]). See, Compl. Proposed FF 190 and Appendix "D" at ¶ "5" (a).

Also, as a result of respondents' deliberate failure to comply with basic rules of discovery and the directives of the Presiding Officer's Scheduling Order of September 30, 2020, paragraph "2" which required respondents to provide that: "each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g. a page number in the appendix", complainants respectfully request that the Presiding Officer grant the relief requested above.

43. Complainants never came to inspect any of the vehicles that arrived at their destination, which were subject of Invoice #83486, and Complainants refused to clear such vehicle even though advised to do so. (Respondent's Exhibit #7).

Response:

Denied. See response to respondents' proposed finding of fact No.: 1 and Response No.: 3 for the basis for this denial.

Further, the exhibit referenced above does not establish that complainants never came to inspect the subject vehicles. Also, as a result of respondents' deliberate failure to comply with basic rules of discovery and the directives of the Presiding Officer's Scheduling Order of September 30, 2020, paragraph "2" which required respondents to provide that: "each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g. a page number in the appendix", complainants respectfully request that the Presiding Officer grant the relief requested above.

Also, the subject invoice referenced by complainants never existed. After reviewing every single invoice in respondents' referenced exhibits, the number in the "Number" Box for every invoice fails to contain the invoice number referenced above. The Presiding Officer is respectfully referred to the table of invoices listed in Complainants' accompanying Brief on this issue.

Additionally, the date on the subject email in the exhibit is June 25, 2018 and said email, is between Andre Bou Jaoude and MTL. The MTL HBOL for the vehicles was received two days after the e-mail of June 27, 2018 (See, Compl. Proposed FF 25) and also contains defective a consignee address (to wit: Consignee: Nnabugwu Chinedu Andrew,

63 New Hook Road, Bayonne NJ 07002 [See, Compl. Proposed FF 26.]). On MTL's Dock Receipt and on the MSC BOL, there was a completely different Consignee and notify party listed therein (to wit: complainants). See Complainants' proposed FF#'s 155 – 156.

44. Complainant, Mr. Chinedu, was advised by Andre Bou Jaoude, that the vehicles that are the subject of Invoice #83486 had arrived at destination.

Response:

Denied. See response to respondents' proposed finding of fact No.: 1 for the basis for this denial.

Further, the exhibit referenced above does not establish that complainants were ever advised by Andre Bou Jaoude, that the vehicles that are the subject of Invoice #83486 had arrived at destination. Also, as a result of respondents' deliberate failure to comply with basic rules of discovery and the directives of the Presiding Officer's Scheduling Order of September 30, 2020, paragraph "2" which required respondents to provide that: "each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g. a page number in the appendix", complainants respectfully request that the Presiding Officer grant the relief requested above.

Also, the subject invoice referenced by complainants never existed. After reviewing every single invoice in respondents' referenced exhibits, the number in the "Number" Box for every invoice fails to contain the invoice number referenced above. The Presiding Officer is respectfully referred to the table of invoices listed in Complainants' accompanying Brief on this issue. See also, Response No.: 43 above.

45. Since Complainants never appeared to view the subject vehicles referenced in #43 above, they have no firsthand knowledge as to what "cutting and dismantling" meant. Complainants only saw such statement on the invoice.

Response:

Denied. See response to respondents' proposed finding of fact No.: 1 for the basis for this denial.

Further, the exhibit referenced above does not establish that complainants were ever advised by Andre Bou Jaoude, that the vehicles that are the subject of Invoice #83486 had arrived at destination. Also, as a result of respondents' deliberate failure to comply with basic rules of discovery and the directives of the Presiding Officer's Scheduling Order of September 30, 2020, paragraph "2" which required respondents to provide that: "each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g. a page number in the appendix", complainants respectfully request that the Presiding Officer

grant the relief requested above.

Also, the subject invoice referenced by complainants never existed. After reviewing every single invoice in respondents' referenced exhibits, the number in the "Number" Box for every invoice fails to contain the invoice number referenced above. The Presiding Officer is respectfully referred to the table of invoices listed in Complainants' accompanying Brief on this issue.

Additionally, MTL charged complainants \$500.00 for each car (for a total of \$1,000.00) (See complainants' FF# 162) for the two at issue herein that were cut and dismantled by MTL (to wit: a 2009 Toyota Venza [Vin# 4T3ZK11A79U017319] and a 2008 Lexus RX350 [Vin# 2T2HK31U58C080845]). See, Compl. Proposed, FF# 190 and Appendix "D" at ¶ "5" (a). MTL never provided the pictures to complainants indicating what they did what they did to the cars for this money. MTL failed to produce the pictures during the course of discovery in this matter. See, Compl. Proposed FF#'s 163-165. Also, respondents' waived their right to establish that Complainants never appeared to view the subject vehicles referenced in #43 above, or that they have no firsthand knowledge as to what "cutting and dismantling" meant (by deposition of complainants which respondents choose not to take, and/or by request for admission which respondents chose not to propound to complainants).

46. Complainants' counsel, Mr. Nussbaum, without obtaining any authorization for such, began to contact Andre Bou Jaoude and threatened him with legal action. (Respondent's Exhibit #13).

Response:

Denied. This proposed finding of fact and attached exhibit fail to establish any obligation imposed upon the undersigned counsel to obtain authorization from respondents to contact Andre Bou Jaoude, nor do they establish any "threat" of legal action, which in any case would be irrelevant to the issues at bar. The exhibit contains three emails without any bates numbers. For these reasons, complainants proactively undertook to mitigate this issue and provide as part of their Appendix "F", all documents produced by respondents which complainants rely upon and which complainants marked with a prefix of "RX" beginning with RX001 and ending with RX242. Respondents have not used these documents. For these reasons, complainants respectfully request that the Presiding Officer simply strike respondents' proposed finding of fact from the record.

Subject to the foregoing, complainants state that any correspondence with Mr. Andre Bou Jaoude was simple request on July 04, 2018 as to whether or not he would: "...honor the attached MTL House Bill of Loading, which list my client as consignee and owner of all 5 cars? If yes, we need you to answer my email below from June 29, 2018....".

47. On June 28, 2018, MTL wrote to the Complainant, Mr. Chinedu, and advised him that his vehicles are ready for pickup. (Respondent's Exhibit #13).

Response:

Denied. This proposed finding of fact and attached exhibit fail to establish that MTL wrote to complainants. The exhibit contains three emails without any bates numbers. For these reasons, complainants proactively undertook to mitigate this issue and provide as part of their Appendix "F", all documents produced by respondents which complainants rely upon and which complainants marked with a prefix of "RX" beginning with RX001 and ending with RX242. Respondents have not used these documents. For these reasons, complainants respectfully request that the Presiding Officer simply strike respondents' proposed finding of fact from the record.

48. Complainants wrote to MTL on June 29, 2018 requesting MTL to stop contacting him. (Respondent's Exhibit #13).

Response:

Denied. This proposed finding of fact and attached exhibit fail to establish that Complainants wrote to MTL. The exhibit contains three emails without any bates numbers. For these reasons, complainants proactively undertook to mitigate this issue and provide as part of their Appendix "F", all documents produced by respondents which complainants rely upon and which complainants marked with a prefix of "RX" beginning with RX001 and ending with RX242. Respondents have not used these documents. For these reasons, complainants respectfully request that the Presiding Officer simply strike respondents' proposed finding of fact from the record. Subject to the foregoing, complainants admit that the undersigned counsel wrote to MTL and advised MTL to stop communicating with complainants directly since complainants were represented by the undersigned counsel at that time.

49. Complainants received invoices that appear in Respondents' exhibits 11 and 12.

Response:

Denied. See response to respondents' proposed finding of fact No.: 1 for the basis for this denial. Also, as a result of respondents' deliberate failure to comply with basic rules of discovery and the directives of the Presiding Officer's Scheduling Order of September 30, 2020, paragraph "2" which required respondents to provide that: "each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g. a page number in the appendix", complainants respectfully request that the Presiding Officer grant the relief requested above.

Also, respondents' Exhibit 11 contains Invoice 16069 from Savanna for the vehicle Vin # ending in 6538, dated 03/23/2019 and due on 04/22/2019. However, MTL's storage

invoice 16069 from Savanna for the vehicle Vin # ending in 6538 (See RX0082) is dated 2/2/2018 and is in the sum of \$2,230.00 for storage of this car from 9/21/17 through 5/1/18. This begs the question as to how MTL could claim that complainants had abandoned this vehicle in May 2018 when during this time period, the vehicle was allegedly physically located in a storage facility under the control of Baltic Auto Shipping Corp until March 16, 2019, and Exhibit 12 contains Invoice I-10043-17 from CA, for vehicle Vin # ending in 2140, dated 1/09/2019 and due on 1/23/2019. Also, MTL's storage invoice 74420 and Invoice 82084 from CA for the vehicle Vin # ending in 132140 (See RX0086, RX0076) is dated May/22/2018 and is in the sum of \$4,190.00 for storage of this car from 3/9/17 through 5/1/18. This begs the question as to how MTL could claim that complainants had abandoned this vehicle in May 2018 when during this time period, the vehicle was allegedly physically located in a storage facility under the control of NN Safeway Shipping Co. from California.

Last, no storage invoices were provided from the Houston warehouse for vehicle Vin # ending in 072942. Exhibits 11 and 12 contain no proof that these invoice were provided to complainants.

Finally, see Objection in Response No.: 1 and Response Nos.: 3 for a further basis for this denial.

50. On December 15, 2017 and on February 6, 2018, MTL advised Complainants that they have to resolve the issue of long outstanding storage and then services will continue with if the freight and loading will be prepaid. (Respondent's Exhibit #5, pages 53 and 69).

Response:

Denied. See response to respondents' proposed finding of fact No.: 1 and Response No.: 3 for the basis for this denial. Also, the page referenced above is not marked in respondents' Exhibit "5". Complainants were never obligated to pay outstanding storage inasmuch as all invoices specifically state that payment was only after the cargo had sailed: "Payments must be received no later than 10 business days after sailing date."

51. MTL has always waited for Complainants to authorize application of any of their funds to any outstanding charges. (Respondent's Exhibit #14).

Response:

Denied. See complainants proposed FF#'s 30-111.

52. Complainants are a professional custom clearing agent. (Respondent's Exhibit #15).

Response:

Denied. Complainants is not a *custom* clearing agent. See, complainants' Appendix "A" at CX0018.

53. On April 18, 2017, Complainants were emailed a written storage policy of MTL.(Respondent's Exhibit #16).

Response:

Admit. On the same page of the email containing the written storage policy of MTL, MTL also attached a list of cars currently in storage at MTL's storage facilities, which did not list any of the subject cars at issue.

54. Complainants never produced any of the Facebook posts concerning Respondent's Exhibit #17.

Response:

Denied. As a result of respondents' deliberate failure to comply with basic rules of discovery and the directives of the Presiding Officer's Scheduling Order of September 30, 2020, paragraph "2" which required respondents to provide that: "each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g. a page number in the appendix", complainants respectfully request that the Presiding Officer grant the relief requested above.

Dated: October 13, 2021
Brooklyn, New York

Respectfully submitted,

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.
Attorney for Complainants